

1 _____ BILL NO. _____

2 INTRODUCED BY _____
3 (Primary Sponsor)

4 A BILL FOR AN ACT ENTITLED: "AN ACT PROHIBITING THE BANNING OF USERS FROM DIGITAL
5 PUBLIC SQUARES; PROVIDING DEFINITIONS; PROVIDING EXCEPTIONS; AND PROVIDING
6 PENALTIES."

7

8 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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10 NEW SECTION. **Section 1. Digital public squares -- prohibition against banning access --**

11 **definitions.** (1) A business or entity providing a digital public square may not limit or abridge an individual
12 user's right to assemble or exercise freedom of speech in a digital public square through digital prohibition, as
13 defined in this section, unless in violation of state or federal laws.

14 (2) A business or entity providing a digital public square may not censor user-created content
15 through any means, including prohibiting other users from viewing user-created content.

16 (3) A business or entity may not create community standards, contracts, or terms and conditions
17 that violate subsections (2) or (3) of this section.

18 (4) A business or entity in violation of subsections (2), (3), or (4) of this section may be liable for
19 actual and punitive damages in an action brought by a user of a digital public square.

20 (5) A business or entity is not in violation of subsection (2) if it offers advertisements to users of a
21 digital public square.

22 (6) A digital public square may be terminated by the business or entity providing the digital public
23 square.

24 (7) For the purposes of this section, the following definitions apply:

25 (a) "Deplatforming" means removing a user of a digital public square without the request of the
26 user.

27 (b) "Digital prohibition" means banning, deplatforming, or censoring a user of a digital public
28 square through any means, including but not limited to the use of shadow banning, algorithms, monitoring,

1 intimidation, defamation, and throttling.

2 (c) "Digital public square" means an online public platform provided free of charge to some or all
3 users.

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5 NEW SECTION. **Section 2. Codification instruction.** [Section 1] is intended to be codified as an
6 integral part of Title 30, chapter 14, and the provisions of Title 30, chapter 14, apply to [section 1].

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